

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 20, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	24CV452320	William Dresser et al vs Arghavan Amini et al	Motion: Strike Ctrl Click (or scroll down) on Line 6 for tentative ruling.
LINE 8	26CV491978	Simon Renarde et al vs Elnaz Soltaniazarbayjani et al	Hearing: OSC TRO/Preliminary Injunction Parties to appear to address the Court's prior directive that they submit a stipulation regarding interim orders.
		9:01 CALENDAR	
9:01 LINE 1	25CV456893	CLAUDIA ORTIZ VALENCIA, an individual vs ANULEKHA CHODEY, an individual et al	Hearing: Compromise of Minor's Claim Petitioner to appear. (Rule of Court, Rule 7.952(a).) The tentative ruling is to approve the unopposed petition and for the Court to sign the previously submitted Forms MC-351 and MC-355.

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Calendar Line 1

Case Name: *Rob Millier vs TESLA, INC.*

Case No.: 25CV463413

Petitioner seeks an order enforcing “the judgment entered in this matter pursuant to that certain Order re: Petition to Confirm Arbitration Award issued February 6, 2026” and for an imposition of sanctions on Mark W. Skanes, Attorney for Respondent, pursuant to Code of Civil Procedure section 177.5. The petition is DENIED.

As Respondent notes, after granting the petition to confirm the arbitration award, the Court ordered that Petitioner “shall submit a proposed judgment consistent with this order, accompanied by the necessary FORM EFS-020 within 10 days of the date of the hearing” and Petitioner did not do so. Confirmation of an arbitration award is an option that a party to an arbitration may, but is not required to, pursue. Confirmation allows a party to have a judgment entered in conformity with the award and to enforce that judgment like any other judgment of the court in which it is entered. Perfecting this option is responsibility of the party seeking the confirmation and judgment. Here, Petitioner saw fit to file a motion to enforce a judgment just over 60 days from the hearing confirming the award, but neglected to submit a proposed judgment for signature and entry within 10 days of that hearing in compliance with the Court’s order. Accordingly, Petitioner has not perfected the option of seeking confirmation and judgment and his motion is improper and is DENIED.

Petitioner’s request for sanctions is similarly DENIED.

Respondent’s request for sanctions (reasonable attorney’s fees) is also DENIED as it lacks citation to a statutory or other legal basis and is not supported by a declaration supporting the request and any specific amount.

The Court will prepare the final order.

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Calendar Line 2

Case Name: *Stonecrest Acquisitions, LLC v. David Schultz, et al.*

Case No.: 25CV477456

Before the Court is Defendant David Schultz's ("Defendant" or "Mr. Schultz") demurrer to the Complaint filed by Plaintiff Stonecrest Acquisitions, LLC ("Plaintiff" or "Stonecrest").

This is an action for breach of contract. According to the allegations of the Complaint, on July 7, 2025, Plaintiff and Defendant entered into a "Property Purchase and Sale Agreement" (the "Agreement") pursuant to which Defendant agreed to sell his interest in real property located at 5324 Borneo Circle in San Jose to Plaintiff for \$360,000. (Complaint, ¶¶ 2, 7, 8.) Escrow was to be opened within three days of the execution of the Agreement, however, Mr. Schultz and co-defendant Sandra Lynn Hammack ("Ms. Hammack") allegedly conspired to interfere with the sale and took actions to prevent the close of escrow. (*Id.*, ¶ 9.)

On August 6, 2025, Mr. Schultz's Homeowners Association ("HOA") received a payoff demand for full payment for the outstanding balance on the HOA collection amount, but Ms. Hammack took deliberate steps to prevent the HOA from satisfying that demand. (Complaint, ¶ 10.)

Based on the foregoing, Plaintiffs initiated this action with the filing of the Complaint on October 13, 2025, asserting claims for: (1) breach of contract (against Mr. Schultz); (2) intentional interference with contractual relations (against Ms. Hammack); (3) negligent interference with contractual relations (against Ms. Hammack); and (4) conspiracy (against all defendants). Defendant demurs to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action and uncertainty and demurs to the fourth cause of action on the ground of uncertainty. (Code Civ. Proc., § 430.10, subds. (e) and (f). Plaintiff opposes the motion.

Defendant's demurrer to the first and fourth causes of action on the ground of uncertainty is **OVERRULED**. "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.) Such a demurer "is strictly construed even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) To avoid a demurrer for uncertainty, a pleading merely needs to "set forth the essential facts of [the] case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of [the] cause of action." (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719, internal citations and quotations omitted.) Thus, a demurer for uncertainty "should not be sustained if the allegations are sufficiently clear to apprise the defendant of the issues that must be met, even if the allegations of the complaint may not be as clear and as detailed as might be desired." (*Merlino v. West Coast Macaroni Mfg. Co.* (1956) 90 Cal.App.2d 106, 108.) The first and fourth causes of action are both sufficient clearly to apprise Defendant of the nature of each claim, far from "ambiguous" as he claims, and any specific uncertainties can be clarified in discovery.

Defendant maintains Plaintiff fails to state a claim for breach of contract because (1) Plaintiff fails to allege that it was ready, willing and able to perform as of the date required by the Agreement and (2) Plaintiff fails to state a claim for specific performance because it does not allege that damages are an inadequate remedy at law. None of the contentions are persuasive.

First, the first cause of action is not explicitly pleaded as a claim for specific performance, but rather merely breach of contract. While Plaintiff does pray for a judgment of specific performance at the conclusion of the Complaint, to the extent Defendant believes that Plaintiff has not pleaded entitlement to such relief the proper mechanism to raise that issue is a motion to strike and not a demurrer. Further, even if Defendant had properly challenged the relief requested, the Court is not persuaded that his argument would be meritorious. While it is generally the case that specific performance requires that the plaintiff not have an adequate remedy at law (see *Blackburn v. Charnley* (2004) 117 Cal.App.4th 758, 766), as Plaintiff notes, there is presumption “that the breach of any agreement to transfer real property cannot be adequately compensated for by money damages” (*BD Inns v. Pooley* (1990) 218 Cal.App.3d 289; see also Civ. Code, § 3387).

Second, none of the authorities cited by Defendant provide that a plaintiff claiming anticipatory breach of contract- as Plaintiff does here- must expressly allege that he was ready, willing and able to perform as required by the contract. Instead, these authorities pertain to the *evidentiary* burden of such a plaintiff at trial or summary judgment. (See *Ersa Grae Corp. v. Fluor Corp.* (1991) 1 Cal.App.4th 613, 616; see also *County of Solano v. Vallejo Redevelopment Agency* (1999) 75 Cal.App.4th 1262, 1273.) Defendant otherwise fails to substantiate his argument that a specific allegation regarding Plaintiff’s ability to perform is required at the pleading stage. In accordance with the foregoing, Defendant’s demurrer to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action is OVERRULED.

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Salvatore Bonina v. Breakthrough Physical Therapy, Inc. et. al*

Case No.: 24CV435105

Before the Court is Breakthrough Physical Therapy, Inc. (“Breakthrough”) and Eri Matsushita (“Matsushita”) (together, “Defendants”) motion for summary judgment, or, in the alternative, summary adjudication, as to the second amended complaint (“SAC”) filed by Plaintiff Salvatore Bonina (“Bonina”).

I. BACKGROUND

According to the allegations of the SAC, in 2020 Bonina sought physical therapy treatment with Breakthrough and Matsushita at Breakthrough’s office in Sunnyvale, California. (SAC, ¶ 11.) During a visit to Breakthrough’s office in August or September 2020, Matsushita informed Bonina that she was going to perform a manipulation to Bonina’s neck. (*Id.* at ¶ 12.) Matsushita informed Bonina that she was not supposed to perform these types of manipulations, but she knew how to perform them based on her experience with a prior employer. (*Ibid.*) Matsushita was not authorized to perform such manipulations. (*Ibid.*) Matsushita cradled Bonina’s head and neck in her hands while Bonina lay facing upwards on his back on a treatment table. (*Ibid.*) Matsushita did not advise Bonina to relax his neck and, while Bonina’s neck muscles were tense and contracted, Matsushita suddenly and violently twisted Bonina’s head and neck to the side causing Bonina immediate and extraordinary pain (the “Subject Incident”). (*Ibid.*)

Following that visit, Bonina returned to Breakthrough on multiple occasions. (SAC, ¶ 20.) After that series of physical therapy concluded in 2021, Bonina returned to Breakthrough in 2022 for approximately fourteen additional visits, as well as another eighteen additional visits in 2023. (*Ibid.*)

Months after the Subject Incident, in February 2021, Bonina began experiencing fainting episodes in which he would lose consciousness and fall to the ground. (SAC, ¶ 22.) In May 2023, Bonina’s healthcare providers informed him that his left vertebral artery was significantly compressing his medulla and that this compression was the cause of these episodes. (*Id.* at ¶ 30.) On or around August 28, 2023, Dr. Gary K. Steinberg (“Steinberg”) informed Bonina that this “significant compression” was caused by the Subject Incident. (*Id.* at ¶ 31.)

On April 11, 2024, Bonina filed the initial complaint in this matter. In March 2025, Bonina filed the SAC, alleging three causes of action for: (1) negligence; (2) battery; and (3) medical malpractice. The SAC alleges negligence and battery against Breakthrough and Matsushita. The SAC alleges medical malpractice against other defendants in this matter. In February 2026, Breakthrough and Matsushita moved for summary judgment on the grounds that they did not breach any applicable standard of care and they did not proximately cause or contribute to Bonina’s injuries. (Defendants’ Notice of Summary Judgment, p. 2:1-4.) In the alternative, Breakthrough and Matsushita moved for summary adjudication on the grounds that the applicable statute of limitations bars the SAC and the SAC’s second cause of action for battery fails for several reasons. (*Id.* at p. 2:11-25.)

II. DISCUSSION

A. LEGAL STANDARD

The pleadings limit the issues presented for summary judgment or summary adjudication, and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 74.) A defendant moving for summary judgment need address only the issues raised by the operative complaint. (*Bostrim v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663-1664.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.”].)

The moving party’s declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff’s claim. (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) Although the same standards of admissibility govern both, the opposition declarations are liberally construed, while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) As a general matter, the moving party may not rely on additional evidence filed with its reply papers. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

B. Motion for Summary Judgment

a. Breach

Breakthrough and Matsushita move for summary judgment on the grounds that there is no triable issue of material fact that Breakthrough and Matsushita complied with the applicable standard of care. (Memorandum of Points and Authorities in Support of Motion for Summary Judgment (“MPA”), pp. 12:21-16:10.)

A cause of action for medical malpractice or medical negligence consists of the same essential elements as an ordinary negligence cause of action, namely duty, breach, causation, and damages. (*Turpin v. Sortini* (1982) 31 Cal.3d 220, 229-230.) The distinction is that the skill and training of the defendant “serves to establish the basis by which ‘ordinary prudence’

will be calculated and the defendant's conduct evaluated." (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 998.) Because a medical professional's conduct is measured against the skill, prudence, and diligence as is commonly possessed and used by others in that medical profession, expert testimony is ordinarily required to establish the standard of care and whether a breach of that standard occurred. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606-607 (*Hanson*).)

Breakthrough and Matsushita submit the declaration of David Powers ("Powers"), a licensed and practicing physical therapist in California, in support of their motion. According to Powers, Bonina first presented himself to Breakthrough on March 10, 2020; Bonina exhibited various symptoms; the therapist's assessment found Bonina had postural dysfunction, impaired shoulder strength, and neck pain, as well as headaches caused by neck pain; Matsushita performed the following treatment: "manual therapy, neuromuscular re-education, therapeutic exercise, ice/IFC (interferential current), and PT evaluation"; and Bonina returned to Breakthrough for various treatments with Matsushita in March 2020, May 2020, June 2020, July 2020, August 2020, and September 2020. (Defendants' Compendium of Evidence in Support of Motion for Summary Judgment ("Defendants' Evidence"), Ex. 3 ("Powers Decl." or "Powers Declaration"), ¶¶ 7-70.) The Powers Declaration concludes that "the evaluations, history, documentation, physical therapy care and treatment, communications, and all related services performed by [Matsushita] and [Breakthrough], to [Bonina] were well within the standard of care at all times. . . . The physical therapy standard of care permits a therapist to perform [various treatments]. . . . [Bonina] was documented as being apprised and understanding the various risks of physical therapy . . . it was appropriate and within the standard of care for Defendants to provide physical therapy treatment to Mr. Bonina's cervical spine area. . . . In reviewing the detailed physical therapy documentation as well as [Bonina's] testimony of the alleged incident, his description of the event aligns with [Matsushita] performing manual cervical mobilization of his neck. . . . [I]t is fully within the physical therapy standard of care for a licensed physical therapist to perform cervical/neck mobilization . . ." (*Id.* at ¶¶ 75-82.)

Bonina argues that this testimony is insufficient for Defendants to meet their burden because Powers failed to consider certain evidence and "admits" that in preparing his expert opinion he reviewed only the SAC, the original complaint, deposition testimony from Bonina, and Bonina's records from Breakthrough Physical Therapy. (Memorandum of Points and Authorities in Support of Opposition ("Opposition"), pp. 9:9-10:3, citing *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743 (*Garibay*); see also Powers Decl., ¶ 4.) In *Garibay*, an expert witness testified in his declaration to the facts of a medical procedure without personal knowledge of those facts, relied on medical records that were not before the court, and set forth a chronology of treatment. (*Garibay, supra*, 161 Cal.App.4th at pp. 742-743.) The Court of Appeal held that without submitting the medical records or providing testimony authenticating those records, the expert witness's declaration lacked a sufficient evidentiary basis. (*Id.* at p. 743.)

Here, unlike the expert in *Garibay*, Defendants *have* submitted the medical records Powers relied on in forming his opinion. Bonina does not appear to challenge the authenticity of these records, and counsel for Defendants states that each of the documents "are true and correct copies of exhibits . . ." (Declaration of Joshua S. Dixon in Support of Motion for Summary Judgment, ¶ 3; Defendants' Evidence, Exs. 1-34.) Thus, the Court is not persuaded by Bonina's argument under *Garibay*.

Furthermore, the Court finds that Breakthrough and Matsushita have met their initial burden of establishing that there are no material issues of fact as to breach. Powers’s expert opinion establishes that Breakthrough and Matsushita met the applicable standard of care.

Consequently, the burden shifts to Bonina to demonstrate the existence of a triable issue of material fact. Bonina submits a declaration from Jordan Dangerfield, a licensed and practicing physical therapist in California. (See Declaration of Michael C. Haley in Support of Opposition to Motion for Summary Judgment (“Haley Decl.”), Ex. J (the “Dangerfield Declaration or “Dangerfield Decl.”).) According to Bonina, the Dangerfield Declaration identifies “six independent standard-of-care deviations,” each of which independently create a triable issue. (Opposition, pp. 10:16-13:7.)

Defendants challenge the admissibility of the Dangerfield Declaration. (Reply in Support of Motion for Summary Judgment (“Reply”), pp. 3:5-5:16; see, e.g., Evidentiary Objections to Plaintiff’s Evidence.) Like Bonina, Defendants direct the Court to *Garibay*, arguing that the Dangerfield Declaration references and relies upon several documents in rendering its opinions that are not before the Court. (Reply, p. 3:18-24.) According to Defendants, the following materials relied on by Dangerfield were not lodged or authenticated with the Court: (1) “Treating-Physician Records and Correspondence from Stanford University, including the Letters and Reports of Gary K. Steinberg, M.D., Dated May 2023, September 14, 2023, and February 9, 2024”; (2) “The Operative Report of September 6, 2023”; (3) “Treating-Physician Letters from Drs. Jaradeh, Dodd, Leeper, and Perez”; (4) “Records of South Valley Neurology and the Office of Dr. Hovsepian”; and (5) “The Published Peer-Reviewed and Authoritative Materials Cited in the Body of Dr. Dangerfield’s Declaration.” (*Id.* at p. 4:3-28.) Defendants appear to be correct that Bonina did not submit these materials in support of his opposition to Defendants’ motion. (See Haley Decl., pp. 2:11-3:8.)

However, Dangerfield notes that Bonina testified that at the time Matsushita performed the “subject cervical rotational thrust, his cervical muscles ‘were still contracted’ . . . Bonina testified that he has no recollection of being given any instruction to relax his neck musculature before the maneuver . . . [t]he Breakthrough chart for the relevant August 13, 2020 through September 16, 2020 visit window contains no documentation of any instruction to relax . . . [u]nder the applicable physical therapy standard of care, the failure to obtain and confirm patient muscular relaxation before applying a high-velocity cervical rotational technique, together with the absence of any documentation that any such step was taken, is a direct and independent deviation from the standard of care.” (Dangerfield Decl., ¶ 33, citing Haley Decl., Ex. A at p. 44:7-21.) Bonina submitted excerpts of his deposition testimony and the patient records from Breakthrough in support of his opposition. (Haley Decl., Exs. A, F, G.) The Court cannot conceive what else would have had to have been submitted in order to provide an evidentiary foundation for the opinion offered in paragraph 33 of the Dangerfield Declaration. Nor does this opinion appear to rely on the materials discussed by Defendants in their reply brief.

Similarly, Dangerfield describes the “Maitland Grading System,” states that based on Bonina’s description of the Subject Incident Matsushita performed a “Grade V” “HVLAT” procedure, and concludes that Bonina’s symptoms did not meet the requirements for performing a Grade V procedure. (Dangerfield Decl., ¶¶ 21-26.) Therefore, according to

Dangerfield, “the decision to perform a more aggressive treatment in that the form cervical HVLAT in of itself was not supported by the patent’s [sic] presentation and fell below the standard of care.” (*Id.* at ¶ 26.) Again, the opinions outlined in paragraphs 21 through 26 of the Dangerfield Declaration do not cite or appear to rely on the records identified by Defendants in their reply or their evidentiary objections. For this reason, the Court OVERRULES Defendants’ objections to paragraphs 23, 24, and 26 of the Dangerfield Declaration.

The Court finds that Bonina has shown that a triable issue of material fact exists as to whether any breach of the applicable standard of care occurred. (See *Hanson, supra*, 76 Cal.App.4th at pp. 606-607.) Moreover, the Court notes that Defendants’ reply brief does not make any arguments specifically addressing the evidence submitted by Bonina concerning breach, instead making more general admissibility arguments under *Garibay*.

b. Causation

In “a medical malpractice action, a plaintiff must prove the defendant’s negligence was a cause-in-fact of injury.” (*Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1118 (*Jennings*), citing *Bromme v. Pavitt* (1992) 5 Cal.App.4th 1487, 1502.) “[T]here exists an obvious distinction between a reasonable medical probability and a medical possibility. There can be many, even an infinite number of, possible circumstances which can produce an injury. But a possible cause only becomes probable when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action. This is the outer limit of inference upon which an issue may be submitted to the jury.” (*Simmons v. W. Covina Medical Clinic* (1989) 212 Cal.App.3d 696, 702 (*Simmons*), internal citations and quotation marks omitted.)

The Court finds that Breakthrough and Matsushita have met their initial burden of establishing a lack of causation. According to Breakthrough and Matsushita, there is no causal connection between any negligent act and Bonina’s injuries because Matsushita “appropriately and within the standard of care applied a cervical mobilization to [Bonina] as permitted within her scope of practice. . . . [Bonina] was allegedly injured, which is a known risk to such maneuvers and to which he explicitly consented.” (MPA, pp. 16:26-17:1.) Powers concludes that none of the alleged actions or omissions of Matsushita or Breakthrough proximately caused or contributed to Plaintiff’s injuries based on the “detailed physical therapy documentation and records reviewed” and in light of Powers’s “education, training, and experience.” (Powers Decl., ¶¶ 84-86.)

In turn, Bonina directs the Court to “written confirmation that the manipulation ‘caused the artery to be pushed up against your brain stem causing the symptoms you were experiencing’”; a letter stating that a “large ectatic left vertebral artery was significantly compressing the medulla from anterolaterally”; expert testimony from Dangerfield; and “temporal and circumstantial proof.” (Opposition, pp. 15:24-16:23.)

Defendants argue that Dangerfield’s testimony is conclusory and speculative under *Jennings*. (Reply, pp. 6:1-7:2.) The Court disagrees. Dangerfield concludes that Matsushita treated Bonina with a “Grade V . . . high-velocity thrust” and states that “a high-velocity rotational thrust applied to the upper cervical spine is a recognized biomechanical mechanism

capable of” producing the types of symptoms confirmed by “Stanford’s neurosurgical evaluation.” (Dangerfield Decl., ¶¶ 21-23, 49.) Dangerfield further states that “Ms. Matsushita’s additional failure to ensure complete cervical muscular relaxation before applying the thrust compounded the biomechanical risk by concentrating greater force on the vertebral arteries and surrounding neurovascular structures.” (*Ibid.*) Dangerfield further notes that during “twenty-two Breakthrough Physical Therapy visits between March 10 and July 29, 2020, the clinical records contain no documentation of dizziness, syncope, tunnel vision, or any other neurological or neurovascular symptom attributable to the cervical treatment. This extended, well-documented baseline of neurological stability is inconsistent with the defense’s suggestion of a clinically significant pre-existing neurovascular condition. . . . Mr. Bonina testified that he experienced new dizziness, tunnel vision, and lightheadedness—sensations he had not previously experienced—beginning within days of the Subject Incident . . .” (*Id.* at ¶ 50, citing Haley Decl., Ex. A at pp. 50:20-51:22.)¹ The Court is not persuaded that this opinion is “too conclusory to satisfy the requirements for admissibility.” (*Jennings, supra*, 114 Cal.App.4th at p. 1119.)

Instead, the Court finds that this evidence shows a triable issue of fact as to whether it was “more likely than not that the injury was a result” of the Subject Incident. (*Simmons, supra*, 212 Cal.App.3d at p. 702.) Thus, the Court finds that Bonina has shown that a triable issue of material fact exists as to causation.

The Court DENIES Breakthrough and Matsushita’s motion for summary judgment.

C. Summary Adjudication

a. Statute of Limitations

Breakthrough and Matsushita argue that the SAC is barred by the applicable statutes of limitations. (MPA, pp. 17:11-22:2.)

Here, the SAC alleges that the Subject Incident occurred in August or September 2020. (SAC, ¶ 12.) A cause of action for battery has a two-year statute of limitations. (Code Civ. Proc., § 335.1.) A cause of action for medical negligence must be brought three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever comes first. (Code Civ. Proc., § 340.5.) Bonina did not file the initial complaint until April 2024. Bonina argues that the delayed discovery rule has tolled any applicable statute of limitations. (Opposition, pp. 17:19-21:26.)

“An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations.]” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797,

¹ The Court notes that there do not appear to be any issues under *Garibay*. Breakthrough and Matsushita have not submitted evidentiary objections to paragraph 49 or 50 of the Dangerfield Declaration, and the statements in these paragraphs do not appear to rely on materials that Bonina did not submit to the Court.

807.) “Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period. [Citations.]” (*Ibid.*) “Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.”

(*Ibid.*) “Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The Court finds that Breakthrough and Matsushita have not met their initial burden to demonstrate that the applicable statute of limitations bars the SAC’s first or second causes of action. Defendants submit evidence that (1) at the time Bonina received the “neck manipulation” that allegedly caused the injuries at issue Bonina knew that Matsushita was “not supposed to perform” the neck manipulation and (2) Bonina experienced pain during this procedure. (MPA, p. 18:2-26, citing Separate Statement of Undisputed Facts (“SSUMF”) nos. 86-87; see also Defendants’ Evidence, Ex. 34 at pp. 42:6-9, 44:15-45:3, 45:18-23.) The Court disagrees that Bonina’s purported knowledge that Matsushita “was not supposed to perform” a “neck manipulation” would start the running of the statute of limitations. (MPA, p. 19:1-3.) As the Court noted in its order on Defendants’ demurrer to the first amended complaint, “Plaintiff’s knowledge that Ms. Matsushita was not authorized to perform the neck manipulation [does not] necessarily defeat[] his allegations that he had no reason to suspect that the symptoms he later suffered were a result of wrongdoing.” (Order re: Demurrer to First Amended Complaint, p. 10:8-11, fn. 3.) Nor was the applicable statute of limitations necessarily triggered by the fact that Bonina experienced symptoms and injury immediately following Matsushita’s alleged conduct. “In many cases, the harm caused by medical malpractice is not immediately apparent. The best medical treatment sometimes fails, or requires long and difficult recuperation, or produces bad side effects. Thus, even if a patient is unhappy with his condition, he may not suspect he has been wronged.” (*Gutierrez v. Mofid* (1985) 39 Cal.3d 892, 899.)

Nor is the Court convinced by the authorities cited by Defendants. (MPA, p. 19:7-8, citing *Filosa v. Alagappan* (2020) 59 Cal.App.5th 772 (*Filosa*); *Brewer v. Remington* (2020) 46 Cal.App.5th 14 (*Brewer*); *Drexler v. Peterson* (2016) 4 Cal.App.5th 1181 (*Drexler*).) *Filosa* and *Drexler* are distinguishable. In both cases the Courts of Appeal held that there were triable issues of fact as to whether the statute of limitations barred the plaintiff’s medical negligence cause of action. (*Drexler, supra*, 4 Cal.App.5th at p. 1184 [“Because there are disputed issues of material fact regarding whether Drexler discovered his injury within the meaning of section 340.5 more than one year before he filed this action, we reverse.”].) For instance, in *Filosa*, the Court of Appeal reversed and held that the defendants did not carry their initial burden on summary judgment to establish a statute of limitations defense in a case involving a “latent, progressive” undiagnosed condition. (*Filosa, supra*, 59 Cal.App.5th at pp. 779-785; see also *id.* at p. 784 [“Defendants point to *Filosa*’s testimony about increasingly severe headaches but fail to establish, as a matter of law, that these would have prompted a person of reasonable diligence to discover the brain tumor.”].)

Even if Defendants had met their initial burden, the Court would have found that Bonina has shown that a triable issue of fact exists as to whether the statute of limitations bars the causes of action alleged in the SAC. In *Brewer*, the Court of Appeal held that “whether

plaintiffs should have linked the persistence of [the injured plaintiff's] symptoms to wrongdoing by [the defendant] is a factual question—there is evidence from which it can be inferred plaintiffs reasonably did not link [the injured plaintiff's] symptoms to any wrongdoing by [the defendant].” (*Brewer, supra*, 46 Cal.App.5th at p. 29.) Here, there is evidence from which it could be inferred that Bonina did not link any symptoms he experienced to any alleged wrongdoing by Breakthrough or Matsushita. Bonina returned to Breakthrough repeatedly following the Subject Incident between 2022 and 2023. (See Defendants’ Evidence, Ex. 33.) Bonina submits evidence that in September and October 2023, Steinberg informed Bonina that the symptoms he was experiencing were attributable to the Subject Incident and a staff nurse, Jezica Teagle, stated that “[w]hen you had manipulation of your neck, it caused the artery to be pushed up against your brain stem causing the symptoms you were experiencing.” (Haley Decl., Exs. H, I; see also ex. A at p. 82:9-20.) Bonina filed the initial complaint in this matter in April 2024, within one year of September 2023.

The Court DENIES Breakthrough and Matsushita’s motion for summary adjudication on statute of limitations grounds.

b. Second Cause of Action

The SAC’s second cause of action alleges battery. (SAC, ¶¶ 48-54.) “The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (*So v. Shin* (2013) 212 Cal.App.4th 652, 669 (*So*), internal citations omitted.) Breakthrough and Matsushita argue that there are no triable issues of fact as to each of these elements.

i. Consent

Breakthrough and Matsushita argue that there is no triable issue of material fact that Bonina consented to the treatment he received from Matsushita. (MPA, pp. 22:28-23:20, citing SSUMF nos. 4, 5, 12, 17, 20, 24, 28, 32, 36, 38.) The Court finds that Defendants have met their burden of establishing consent. Bonina appears to have signed “an informed consent for physical therapy” form with Breakthrough and also “verbally consented to physical therapy.” (Defendants’ Evidence, Exs. 4, 5.)

In turn, the Court finds that Bonina has shown that a triable issue of fact exists as to consent. Battery is an intentional tort that “occurs when a doctor performs a procedure without obtaining any consent. [Citations.]” (*Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324.) “Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery. [Citations.]” (*Cobbs v. Grant* (1972) 8 Cal.3d 229, 239 (*Cobbs*)). Here, Bonina submits to the Court evidence that Bonina did not consent to the procedure performed by Matsushita. (Dangerfield Decl. ¶¶ 23, 46.)²

² The court OVERRULES Breakthrough and Matsushita’s objection to paragraph 46 of the Dangerfield Declaration. Again, it does not appear that this paragraph relies on the materials

ii. Intent to Harm

Breakthrough and Matsushita argue that Bonina must prove that they intended to harm or offend Bonina. (MPA, p. 23:21-28.) According to Defendants, there “is no evidence in any medical records or testimony that Defendants ever intended to harm or offend Mr. Bonina at any time.” (*Ibid.*, citing SSUMF, nos. 3-66.) “[W]hen the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present.” (*Dennis v. Southard* (2009) 174 Cal.App.4th 540, 544, internal citation and quotation marks omitted.) Given this, and the Court’s discussion of consent above, the Court is not persuaded by Defendants’ “intent” argument.

iii. Reasonable Person

Breakthrough and Matsushita argue that Bonina must prove that a reasonable person in Bonina’s situation would have been offended by their conduct. (MPA, p. 24:5-6.) Beyond citing California Civil Jury Instruction 1300 for the general proposition that a plaintiff must prove this, Defendants cite no legal authority or standard outlining what constitutes “reasonableness” or “offensiveness.” Instead, Defendants argue that Bonina testified that he did not experience any pain or discomfort during the Subject Incident and that “any such injuries sustained by Mr. Bonina were the result of an unfortunate manifestation of the known risks of treatment.” (*Id.* at p. 24:7-14, citing SSUMF nos. 98, 99.)

The Court finds that Breakthrough and Matsushita have not met their initial burden of demonstrating that a “reasonable” person would not have found the conduct at issue “offensive.” A “medical battery occurs where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained.” (*So, supra*, 212 Cal.App.4th at p. 669, internal citation and quotation marks omitted.) The very act of performing an unconsented-to procedure would be “offensive” conduct to a “reasonable” person—in other words, the Court struggles to see how a reasonable person would not find “offensive” a medical procedure that they did not consent to.

iv. Causation

As to causation, Breakthrough and Matsushita incorporate causation arguments that they made in support of their motion for summary judgment. (MPA, p. 24:19-20.) Bonina incorporates the arguments he made in response. (Opposition, p. 25:17-22.) Having found that Bonina has created a triable issue of fact as to causation, the Court denies summary adjudication on causation grounds as to the SAC’s second cause of action.

The Court DENIES Breakthrough and Matsushita’s motion for summary adjudication as to the SAC’s second cause of action.

D. Evidentiary Objections

Defendants contend that Bonina did not submit to the court. Moreover, Defendants do not address Bonina’s consent arguments in their reply brief.

Breakthrough and Matsushita submit thirty-two objections, all to the Dangerfield Declaration. (Defendants' Objections to Evidence, nos. 1-32.) The Court has addressed Defendants' objections to paragraphs 23, 24, 26, and 46 of the Dangerfield Declaration. The Court declines to consider the remaining objections, which are not material to the outcome of the motion. (Code Civ. Proc., § 437c, subd. (q) ["In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review."].)

E. Bonina's Request Under Code of Civil Procedure Section 437c, subd. (h)

If the Court is not prepared to deny Defendants' motion, Bonina requests that it continue the motion pursuant to Code of Civil Procedure section 437c, subdivision (h). (Declaration of Michael C. Haley in Support of Plaintiff's Request for a Continuance, ¶ 2; Opposition, pp. 25:23-26:21.) Given the Court's discussion above, Bonina's request is moot.

F. Conclusion

The Court DENIES Breakthrough and Matsushita's motion for summary judgment. The Court DENIES Breakthrough and Matsushita's motion for summary adjudication.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *Jabil Inc. vs Human Bees, Inc.*

Case No.: 23CV413954

Plaintiff asserts that it properly noticed depositions of Human Bees' PMQ and fact witnesses Rita Waara and Dr. Goyal, but "more than three months later Human Bees has not produced a single witness for deposition or even offered a specific date for any deponent."

From a review of the correspondence, it does not appear that Court intervention is truly necessary regarding witness Waara or the Human Bees PMQ, other than to address unresolved scheduling. (See Levitskaia Decl., Exh. 1.) To date Human Bees has neither provided specific dates for these depositions nor sought to quash any notices or secure any protective orders. Efforts to schedule these depositions began over 3 months ago. Jabil's remaining ESI production was served 50 days ago.³ This lawsuit was filed in 2023, and trial is now five months away. It is certainly time for the parties to redouble their good faith commitment to diligent, cooperative, and focused trial preparation.

Accordingly, the Court orders that witness Rita Waara and Human Bees' Person Most Qualified appear and testify at a deposition at a mutually agreed upon date and time and by mutually agreed upon means, but in no event later than July 1, 2026. Six weeks should be more than sufficient for Human Bees to produce these witnesses.

As for Dr. Goyal, it is apparent from the briefing on this motion that Human Bees does not intend to produce Dr. Goyal. Human Bees has not previously sought a protective order as to Dr. Goyal, but it nonetheless seeks a determination that Dr. Goyal does not need to be produced, invoking the "apex doctrine." For the sake of economy and guidance, the Court will address that issue as follows:

The "apex doctrine" protects high-level officers of an organization from depositions when the officer has no first-hand knowledge of the facts of the case or where the officer's testimony would be repetitive. (*Liberty Mut. Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1289.) To depose an officer at the apex of an organization requires "a reasonable indication of the officer's personal knowledge of the case and ... exhaustion of less intrusive discovery methods." (*Id.*, at p. 1287.) "An exception to the rule exists only when the official has direct personal factual information pertaining to material issues in the action and the deposing party shows the information to be gained from the deposition is not available through any other source." (*Westly v. Superior Court* (2004) 125 Cal.App.4th 907, 911.)

From the record before the Court, it is questionable whether Dr. Goyal possesses personal knowledge pertaining to material issues in the action. It is even more questionable whether any such knowledge is unique or superior. Even if these threshold requirements were met, Jabil must still establish such information is not available through any other source. This is a showing Jabil cannot make at this time. Jabil may contend that its inability is the fault of

³ The Court considers any desire on the part of Human Bees to have additional time to review this material to be a luxury, not a right, and not a desire that would motivate the Court to exercise any authority to require the sequencing of discovery under the totality of the circumstances.

Human Bees' delay tactics, but on this point, the Court is not persuaded and is not convinced it would excuse the required showing regardless.

Accordingly, the Court will not compel the deposition of Dr. Goyal at this time. Should Jabil exhaust other avenues, which may include more than merely the deposition testimony of Ms. Waara and Human Bees' PMQ, and maintain a colorable showing of good cause that Dr. Goyal possesses unique, personal, or superior knowledge, the Court may then allow a noticed deposition to proceed. The Court appreciates that "Jabil has no intention to interfere with Human Bees' operations, as evidenced by Jabil's noticing a remote deposition" and is willing to defer Dr. Goyal's deposition "to a date certain after the deposition of Rita Waara and Human Bees' PMQ, or, alternatively, limit the length of the deposition to four hours." Therefore, subsequent to, at minimum, the depositions of Ms. Waara and Human Bees' PMQ, if Jabil chooses once again to notice the deposition of Dr. Goyal, the Court will entertain an *ex parte* application to shorten time to set a hearing on a fully briefed motion for protective order on a more complete record.

The Court declines to impose sanctions. The Court feels this motion was the result of a breakdown in communication during the meet and confer process that created a dichotomy of perspectives between requests for "reasonable accommodations" and undue delay. Ultimately the Court finds substantial justification or other circumstances would render the imposition of sanctions unjust, including the personal unavailability of lead counsel for Human Bees at critical moments during the discovery process.

The Court will prepare the final order.

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Calendar Line 5

Case Name: *Lopez et al. v. Ford Motor Company et al.*

Case No.: 25CV468979

I. BACKGROUND

On September 5, 2021, Plaintiffs Andres Lopez and Barbara Lopez (“Plaintiffs”) purchased a 2021 Ford Explorer, VIN: 1FMSK7BH6MGB32798 (“Subject Vehicle”) from El Cajon Ford (“Defendant”). (Complaint at ¶ 7.) Plaintiffs delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiffs allege that Defendant “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) On June 24, 2025, Plaintiffs filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiffs bring the sole cause of action for negligent repair against Defendant El Cajon Ford.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract (“RISC”). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act (“FAA”) and California Arbitration Act (“CAA”). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Plaintiff has not opposed the motion. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

II. LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 5:24-7:16.) The Arbitration Provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina M. Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, the CAA governs the Arbitration Provision. Code of Civil Procedure section 1281.2 provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy in that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to

compel arbitration has been waived by the petitioner; or [¶] (b)
Grounds exist for rescission of the agreement

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

III. ANALYSIS

A valid agreement to arbitrate exists between the parties. The Arbitration Provision in the RISC provides in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contractor any resulting transaction of relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A.) Plaintiffs signed the agreement on September 5, 2021. In addition, Plaintiffs received notice of the Arbitration Provision as follows “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiffs' signature evinces the fact that they assented to the Arbitration Provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.”].)

The scope of the agreement is covered by Plaintiff's claims. Here, the Arbitration Provision applies to “any claim or dispute, whether in contract, tort, statute, or otherwise . . . which arises out of or relates to your . . . purchase or condition of this Vehicle” (Clayton Decl., Ex. A.) Plaintiffs' sole cause of action against Defendant is for negligent repair, which inherently relates to the condition of the vehicle.

The Court next considers whether Defendant has waived its right to arbitration and whether any other grounds for revocation exist.

Waiver

The California Supreme Court has identified various factors that are “relevant and properly considered in assessing waiver claims.” (*St. Agnes Medical Center v. Pacific Care of California* (2003) 31 Cal.4th 1187, 1195-1196.) Those factors are:

(1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether ‘the litigation machinery has been substantially invoked’ and the parties ‘were well into preparation of a lawsuit’ before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g. taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party.

(*Sobremonte v. Superior Court* (1998) 61 Cal.App.4th 980, 992 [internal citations and quotations omitted; *St. Agnes, supra*, 31 Cal.4th at p. 1196.]) The prejudice requirement under the sixth factor has been abrogated by the California Supreme Court. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562 (*Quach*).) The sixth factor regarding prejudice was based on federal cases that “applied an arbitration-specific rule that required a showing of prejudice to establish waiver.” (*Quach, supra*, 16 Cal.5th at p. 569.) “To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm from the waiving party’s conduct.” (*Id.* at p. 585.)

The multifactor test is not “a mechanical process in which each factor is assessed and the side with the greater number of favorable factors prevails,” nor is the list of factors exclusive: rather, the factors reflect the principles that should guide courts in determining whether a party has waived its right to demand arbitration. (*Zamora v. Lehman* (2010) 186 Cal.App.4th 1, 15 [internal quotation marks and citation omitted].) “The waiver inquiry is exclusively focused on the waiving party’s conduct; neither the effect of that conduct on the party seeking to avoid enforcement nor that party’s subjective evaluation of the waiving party’s intent is relevant.” (*Quach, supra*, 16 Cal.5th at p. 585.)

The facts here do not demonstrate that Defendant has waived its right to arbitration. Defendant has only filed an Answer in this action. (Clayton Decl. at ¶ 4.) Defendant’s Answer includes the affirmative defense of an agreement to arbitrate. (*Id.* at Ex. C.) Defendant has not propounded or responded to any discovery in this matter. (*Id.* at ¶¶ 5, 6.) Thus, Defendant has not engaged in litigation-related conduct. No trial date has been set in these proceedings. (*Id.* at ¶ 7.) Accordingly, no waiver has occurred, and Defendant may move to arbitrate these claims.

Other Grounds for Revocation

As an initial matter, Plaintiffs do not assert any claims for fraud against Defendant Hemborg Ford. The cause of action for fraudulent inducement is only asserted against Defendant Ford Motor Company. Instead, at issue is whether the Arbitration Provision is unconscionable.

The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).) This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126.) Nevertheless, both must be shown. Procedural Unconscionability focuses on oppression or surprise to the “weaker” party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra*, 8 Cal.5th at pp. 125-129.)

Here the Arbitration Provision is not procedurally unconscionable. Plaintiff was given notice of the arbitration provision prior to signing. (Clayton Decl., Ex. A.) The Arbitration Provision itself was on a separate page in bold and capitalized font. (*Id.* at p. 5.) (See cf. *Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1250-1251 [noting that procedural unconscionability has been found where the presence of an arbitration provision has not been distinguished through bold lettering, larger font, or capitalization].) The Court also does not find the Arbitration Provision to be substantively unconscionable as the arbitration is subject to the rules of the American Arbitration Association (“AAA”). (Clayton Decl., Ex. A.) In addition, the Arbitration Provision provides that Defendant is to “pay the filing, administration, service, or case management fee and arbitrator hearing fee up to a maximum of \$5,000, unless the law or rules of the chosen arbitration organization require us to pay more.” (*Ibid.*) The arbitrator is also to apply “governing state law and the applicable statute of limitations.” (*Ibid.*) In the absence of procedural or substantive unconscionability, the Arbitration Provision is enforceable.

Plaintiffs do not object to these arguments. In fact, Plaintiffs have not filed any opposition whatsoever. (See Notice of Non-Opposition.) The failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) [appellate rule stating that “[a] failure to oppose a motion may be deemed consent to the granting of the motion”].)

For these reasons, the Court GRANTS the Motion to Compel Arbitration. This action is hereby STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

IV. CONCLUSION

The Motion to Compel Arbitration is GRANTED. The action as to Defendant El Cajon Ford is STAYED pending the outcome of arbitration.

The action as to Defendant El Cajon Ford shall be set for a Status Hearing re: Arbitration on April 2, 2027 at 11:00 a.m. in Department 13.

Moving party shall prepare and submit the final order, accompanied by the necessary Form EFS-020 within 10 days of the date of the hearing.

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Calendar Line 6 & 7

Case Name: *Dresser, et al. v. Arghavan Amini, et al.*

Case No.: 24CV452320

Before the Court is Defendants Arghavan Amini and Syed Reza Vaghefi's (collectively, "Defendants") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiffs Elma F. Dresser and William C. Dresser (collectively, "Plaintiffs") and motion to strike portions contained therein.

I. BACKGROUND

This is an action for breach of contract and trespass, among other things. According to the allegations of the SAC, on October 23, 2009, Plaintiffs entered written lease with Mr. Sahaj Grewall for property known as 18613 Devon Avenue, Saratoga, California 95070, bearing APN 389-13-048. (SAC, ¶ 10.) The Lease commenced on November 1, 2009 and was extended several times by agreement, including the Lease Extension Agreement dated June 11, 2022, which extended the Lease from July 1, 2022 to June 30, 2026 (the "Lease Extension"). (*Id.* at ¶¶ 12-13.) Plaintiffs and Mr. Grewall negotiated the Lease Extension to ensure Plaintiffs would remain as residents of the Property until after their youngest son graduates high school in June 2026. (*Id.* at ¶ 14.)

On May 3, 2024, Mr. Grewall sold the Property to Defendants, who assumed the obligations under the Lease and the Lease Extension. (SAC, ¶¶ 15-16.) Defendants financed the purchase with a deed of trust that required Defendants, as Borrower, to "occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution." (*Id.* at ¶ 17.) The deed of trust further provided that Defendants would be in default if Defendants, during the loan application process, "misrepresent Borrower's occupancy or intended occupancy of the Property as the Borrower's principal residence." (*Ibid.*) Defendants purchased the Property subject to a substantial loan, the interest of which is greater than the rent payments due under the Lease. (*Id.* at ¶ 18.) Defendants purchased the Property "as is" after viewing the Property multiple times and receiving disclosures from Mr. Grewall concerning the condition of the Property. (*Id.* at ¶ 19.) Defendants purchased the Property with the intent to demolish the existing house and all structures on the Property to rebuild a newer house. (*Id.* at ¶ 20.)

Since May 2024, Defendants have engaged in a campaign of harassment (e.g., refusing to repair miscellaneous problems with the house, threatening to demolish a porch and storage shed, claiming to apply for a demolition permit) against Plaintiffs to cause them to vacate the Property by coercion and fraud. (SAC, ¶¶ 21-24.) Defendants also engaged in acts constituting invasion of privacy, including, but not limited to:

- Recording private conversations;
- Entering the Property for one purpose, and then entering private bedrooms to take photos;
- Demanding access to the Property without Plaintiffs' presence, and continuing to do so even though Defendants did not confine themselves to the inspection or work they were going to do;

- Sending texts and emails containing false and defamatory allegations to Plaintiffs, a real estate agent, and Mr. Grewall;
- Entering the Property for the purported intent of inspection, but instead for purposes of intimidation and engaging in lengthy arguments and confrontations;
- Conducting repeated, unreasonable inspections of the Property, during which Defendants acted in an intimidating manner and made demeaning comments;
- Threatening to defame Plaintiffs; and
- Lying to Deputy Sheriffs during a civil standby that Plaintiffs had hit Amini

(SAC, ¶ 26.)

Amini filed an application for Civil Harassment Restraining Order (“CHRO”), in which she admits going to the Property and recording conversations. (SAC, ¶¶ 27, 31.) Within the CHRO application, Defendants stated they did not want to contact plaintiff William Dresser and that Defendants could not access the Property. (*Id.* at ¶ 30.)

On February 1, 2025, Plaintiffs deducted \$1,494.22 in “Repair and Deduct” expenses from their rent pursuant to Civil Code section 1942(a). (SAC, ¶ 34.) In retaliation, on February 14, 2025, Amini posted a 3-Day Notice to Pay Rent or Quit dated February 11, 2025 (the “Three-Day Notice”). (*Id.* at ¶ 35.)

Plaintiffs initiated this action in November 2024 and filed the First Amended Complaint (“FAC”) on March 26, 2025, asserting claims for: (1) breach of written contract; (2) breach of implied covenant of quiet enjoyment; (3) trespass; (4) invasion of privacy; (5) defamation; (6) elder abuse; (7) intentional infliction of emotional distress (“IIED”); (8) violation of Bane Act; (9) negligence; (10) negligent infliction of emotional distress (“NIED”); (11) unfair business practices in violation of Business and Professions Code sections 1720 et seq.; and (12) retaliation in violation of Civil Code sections 1942, 1942.5.

In December 2025, Defendants demurred to each of the claims asserted in the FAC on the grounds of failure to state sufficient facts and uncertainty and moved to strike portions of the pleading. (Code Civ. Proc., §§ 430.10, subds. (e) and (f), 435 and 436.) Plaintiffs opposed the motion. On December 12, 2025, the Court (Hon. Pennypacker) issued an order overruling the demurrer on the ground of uncertainty in its entirety, overruling the demurrer on the ground of failure to state sufficient facts as to the second, third, fourth, fifth, ninth, tenth and eleventh causes of action and sustaining the demurrer on that ground as to the first, sixth, seventh, eighth and twelfth causes of action. The motion to strike was granted as to Plaintiffs’ request for punitive damages sought in connection with the second cause of action, Plaintiffs’ request for attorney’s fees sought in connection with the negligence claim and Plaintiffs’ request for declaratory relief. It was otherwise denied.

Plaintiffs filed the operative SAC on January 2, 2026, asserting the same claims as the FAC save the addition of a thirteenth cause of action for declaratory relief. Defendants now demur to the first (breach of written contract), third (trespass), sixth (elder abuse), seventh (IIED) and eighth (violation of Bane Act) causes of action on the grounds of failure to state sufficient facts and uncertainty. (Code Civ. Proc., § 430.10, subds. (e) and (f).) They also move to strike portions of the SAC. (Code Civ. Proc., §§ 435 and 436.)

II. DEMURRER

Defendants' demurrer to the first, third, sixth, seventh and eighth causes of action on the ground of uncertainty is **OVERRULED**. As the Court already held in its order on the demurrer to the FAC, as Defendants clearly understand the nature of each of the claims being asserted against them and the absence of certain details does not render the pleading so unclear that they cannot reasonably respond, there is no basis to sustain the demurrer on this ground. (See *Butler v. Sequiera* (1950) 100 Cal.App.2d 143, 145-146 ["[a] special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations already made."]; see also *A.J. Fistes, supra*, 38 Cal.App.5th at p. 695 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."].)

Defendants' demurrer to the first cause of action (breach of written contract) on the ground of failure to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. Previously, the Court sustained the demurrer to this claim in the FAC due to Plaintiffs' failure to identify the provision of the Lease that was allegedly breached by Defendants. Defendants maintain that this cause of action still suffers from the same defect in the SAC, with new allegations that they "were obligated to perform and comply with the Lease provisions to lease the 'premises' and assuming obligations thereunder including ensuring Plaintiffs' quiet possession and enjoyment of the Property throughout the duration of the Lease, and including to maintain the Property" (SAC, ¶ 45) failing to correct this deficiency. The Court agrees. As Defendants argue, Plaintiffs' assertion that they may plead the legal effect of the contract rather than its precise language ignores the nature of the conduct at issue. As alleged in the SAC, the first cause of action is essentially one for failure to exercise reasonable care in managing the property "by not providing a safe, sanitary, or habitable place to live," and the failure to maintain a habitable premises is actionable as a statutory claim under Civil Code section 1714. It is not, in the absence of a specific provision of the Lease, a claim for breach of contract as pleaded by Plaintiffs in the SAC.

Defendants' demurrer to the third cause of action (trespass) on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**. The Court previously overruled Defendants' demurrer to this claim as pleaded in the FAC, and "where a prior demurrer was sustained as to some causes of action but overruled as to others, a defendant may not demur again on the same grounds to those portions of an amended pleading as to which the prior demurrer was *overruled*." (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1035, internal citation omitted, emphasis in original.)

Defendants' demurrer to the sixth cause of action (elder abuse) on the ground of failure to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. The demurrer to this claim in the FAC was sustained due to Plaintiffs' failure to allege that a property right had actually been taken from them or that they were otherwise deprived of such a right, and that Defendants knew or should have known that the conduct upon which the claim is based was likely to be harmful to the elder in question. Defendants persuasively argue that the taking/deprivation allegation defect is still absent in the SAC, with no allegations that Plaintiffs no longer reside at the Property or are otherwise prevented from accessing it. The new allegations provided by paragraph 97 relate to Plaintiffs' claims for harassment, trespass, breach of quiet enjoyment and habitability but do not support a claim for "financial abuse" of an elder, particularly when the purpose of the Elder Abuse Act (see

Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 787 [stating that the purpose is to “protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect”]) is considered.

Defendants’ demurrer to the seventh cause of action (IIED) on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. The demurrer to this claim as alleged in the FAC was sustained due to Plaintiffs’ failure to explain how Defendants’ purported pattern of harassment, refusal to make necessary repairs, lies concerning the status of building permits, trespass and illegal recording constituted outrageous conduct that caused “emotional distress of such a substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Plaintiffs have not added any new or different facts to the SAC so as to compel the Court to depart from its prior conclusion that outrageous conduct within the meaning of a claim for IIED has not been pleaded, and Plaintiffs’ reliance on paragraph 32 of the SAC, which contains allegation regarding Amini’s application for a CHRO, does help them because as the Court previously ruled, allegations relating to Defendants’ CHRO litigation activity is subject to the litigation privilege.

Defendants’ demurrer to the eighth cause of action (violation of the Bane Act) on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. This claim as pleaded in the FAC was found to be defective because Plaintiffs failed to plead speech by Defendants which threatened violence as required by the Bane Act. (See Civ. Code § 52.1, subd. (k).) While Plaintiffs added new allegations to this claim (see SAC, ¶¶ 110-111), these allegations do not actually contain any new or different facts from the FAC, nor the specificity needed to state a statutory cause of action. Plaintiffs simply have not pleaded any *specific* act of violence or speech threatening violence by Defendants. Consequently, they still have not stated a claim for violation of the Bane Act.

III. MOTION TO STRIKE

With their motion, Defendants move to strike paragraphs 27, 28, 30, 31, 32, 87, 106, paragraph 4 of the prayer for relief, and the thirteenth cause of action.

The motion is GRANTED WITHOUT LEAVE as to paragraphs 27, 28, 32 and 87, DENIED as to paragraphs 30, 31, paragraph 4 of the prayer for relief and the thirteenth cause of action, and DENIED AS MOOT as to paragraph 106. Plaintiffs have not pleaded or otherwise identified a contractual or statutory basis for their request for attorney’s fees in connection with the fourth cause of action for invasion of privacy. As for the newly added thirteenth cause of action, the Court believes that its addition is within the scope of amendment given the Court’s prior ruling on the motion to strike portions of the FAC which pertained to Plaintiffs’ prayer for declaratory relief. (See *Patrick v. Alcer Corp.* (2008) 167 Cal.App.4th 995, 1015 [addition of new cause of action may be proper when it “directly responds to the court’s reason for sustaining the earlier demurrer.”].)

The Court will prepare the final order.

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